

Track 1 — Chapter Build Pass

MPEP Chapter 1300 · Allowance and Issue

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: The Home Stretch

Chapter 1300 covers what happens after claims are found allowable — a shorter chapter, but dense with hard deadlines (the non-extendable issue fee period especially) and PTA mechanics that show up reliably on the exam.

Rule 1: Notice of Allowance & the Issue Fee (§1302, §1306)

PLAIN ENGLISH

Once all claims are found allowable, the USPTO issues a **Notice of Allowance**. The applicant must then pay the **issue fee** (and any required publication fee) within a set, statutorily fixed, **non-extendable** period — generally 3 months from the mailing date of the Notice of Allowance — or the application will be regarded as abandoned.

EXAMPLE

An applicant receives a Notice of Allowance mailed March 1. The issue fee must be paid by approximately June 1 (3 months later) — unlike ordinary Office action deadlines, this period cannot be extended by paying extension fees.

QUIZ

Is the period to pay the issue fee after a Notice of Allowance extendable, like a standard Office action response period?

- (A) Yes, extendable up to 6 months like other deadlines
- (B) No — it's a fixed, non-extendable statutory period
- (C) Yes, with Director approval only
- (D) There is no deadline to pay the issue fee

Rule 2: Amendments After Allowance (§1302.04, Rule 312)

PLAIN ENGLISH

After a Notice of Allowance, amendments (a **Rule 312 amendment**) are generally entered only if they don't require more than cursory review — e.g., minor formal corrections — since substantive amendments after allowance risk requiring further search/examination, which the application isn't normally positioned to receive at that late stage without reopening prosecution (e.g., via RCE).

EXAMPLE

An applicant notices a typo in a claim after receiving the Notice of Allowance and files a Rule 312 amendment fixing just the typo — this kind of minor, non-substantive fix is routinely entered without reopening examination.

QUIZ

A substantive claim amendment that would require a new prior art search is submitted after a Notice of Allowance. Is this generally entered as a matter of course?

- (A) Yes, all post-allowance amendments are automatically entered
 - (B) No — substantive amendments requiring further search generally aren't entered without reopening prosecution
 - (C) Yes, but only if filed within 1 month
 - (D) No, no amendments are ever possible after allowance
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Rule 3: Patent Term Adjustment (PTA) (§2730s, cross-referenced)

PLAIN ENGLISH

Patent Term Adjustment extends a patent's 20-year-from-filing term to compensate for certain USPTO delays during prosecution (e.g., failing to act within specified time frames) — but PTA is reduced for delays attributable to the applicant (e.g., late responses, extensions of time taken by the applicant), and applicants can request reconsideration of a PTA determination.

EXAMPLE

If the USPTO takes longer than the statutory guideline periods to issue a first Office action, that delay generally adds days to the patent's term via PTA — but if the applicant separately takes a 3-month extension of time to respond to an action, that applicant-caused delay reduces the PTA otherwise available.

QUIZ

Which of the following would typically REDUCE the amount of Patent Term Adjustment awarded?

- (A) USPTO delay in issuing a first Office action
 - (B) An applicant-requested extension of time to respond
 - (C) USPTO delay in issuing a Notice of Allowance
 - (D) A PTAB appeal that the applicant wins
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Rule 4: Publication of Applications (§1120s, cross-referenced)

PLAIN ENGLISH

Most utility applications are automatically **published 18 months** after the earliest claimed priority date, unless the applicant files a non-publication request at filing (certifying the invention hasn't been and won't be the subject of a foreign filing requiring publication) — and that request can be rescinded later if a foreign filing does occur.

EXAMPLE

An applicant who intends to seek patent protection only in the U.S., with no foreign filings, may file a non-publication request at the time of filing to keep the application confidential until issuance — but must rescind that request promptly if they later decide to file a corresponding foreign application.

QUIZ

What allows an applicant to prevent the standard 18-month publication of their application?

- (A) Nothing — publication is mandatory with no exceptions
 - (B) A non-publication request filed at filing, certifying no corresponding foreign filing will occur
 - (C) Paying an additional fee at any time
 - (D) Requesting expedited examination
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Rule 5: Abandonment for Failure to Pay the Issue Fee & Revival (§711, §1308 cross-ref)

PLAIN ENGLISH

Failing to pay the issue fee within its fixed period results in abandonment. Reviving such an application generally requires a petition showing the delay was **unintentional** (the "unavoidable" delay standard was eliminated for most petition types in recent USPTO practice, leaving the unintentional delay standard as the primary route), along with the required fee and the overdue issue fee.

EXAMPLE

An applicant's attorney misses the issue fee deadline due to an internal docketing error. To revive the abandoned application, a petition asserting the delay was unintentional, along with the appropriate fee and the overdue issue fee, must be filed.

QUIZ

What is the primary standard used today to revive an application abandoned for failure to pay the issue fee?

- (A) Unavoidable delay only
 - (B) Unintentional delay
 - (C) No revival is ever possible
 - (D) Only delay caused by the USPTO qualifies
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An applicant misses the issue fee deadline by two weeks with no extension request filed (since none is available). What is the status of the application?

- (A) Still pending automatically
- (B) Abandoned, subject to a possible petition to revive for unintentional delay
- (C) Automatically issued anyway
- (D) Converted to a provisional application

2. Which of these would generally increase available Patent Term Adjustment?

- (A) The applicant taking a 2-month extension of time
- (B) USPTO delay beyond the statutory guideline period for a first action
- (C) The applicant filing an RCE
- (D) The applicant appealing and losing

3. An applicant wants to keep their application confidential and has no plans for foreign filing. What should they do at filing?

- (A) Nothing, all applications are automatically confidential
- (B) File a non-publication request certifying no corresponding foreign filing
- (C) Request expedited examination
- (D) File a provisional application instead

4. A minor typographical claim correction is submitted right after a Notice of Allowance. Is this generally entered?

- (A) No, no amendments are possible post-allowance
- (B) Yes, as a Rule 312 amendment not requiring substantive re-examination
- (C) Only with a new filing
- (D) Only if it changes claim scope

5. True or False: The period to pay the issue fee can be extended just like a standard Office action response period.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Issue fee deadline (~3 months from Notice of Allowance) is **fixed and non-extendable**.
- Post-allowance (**Rule 312**) amendments: generally only minor/formal fixes entered without reopening prosecution.
- **PTA** increases for USPTO delay, **decreases** for applicant-caused delay (e.g., extensions of time).
- 18-month publication is default; a **non-publication request** (no foreign filing planned) can prevent it, but must be rescinded if a foreign filing later occurs.
- Abandonment for missed issue fee → revival via petition showing **unintentional delay**.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Notice of Allowance & the Issue Fee (§1302, §1306)

Is the period to pay the issue fee after a Notice of Allowance extendable, like a standard Office action response period?

Answer: B

The issue fee period is one of the few truly non-extendable deadlines in patent prosecution — missing it results in abandonment with no extension-fee remedy, only a petition to revive for unintentional delay.

Rule 2: Amendments After Allowance (§1302.04, Rule 312)

A substantive claim amendment that would require a new prior art search is submitted after a Notice of Allowance. Is this generally entered as a matter of course?

Answer: B

Post-allowance amendments are limited to essentially formal/minor fixes; anything requiring real re-examination isn't entered as a matter of course at this stage.

Rule 3: Patent Term Adjustment (PTA) (§2730s, cross-referenced)

Which of the following would typically REDUCE the amount of Patent Term Adjustment awarded?

Answer: B

PTA offsets USPTO-caused delay but is reduced for applicant-caused delay, such as extensions of time — a frequently tested asymmetry.

Rule 4: Publication of Applications (§1120s, cross-referenced)

What allows an applicant to prevent the standard 18-month publication of their application?

Answer: B

The non-publication request is the specific mechanism, but it comes with a condition (no foreign filing) and a duty to rescind if that condition changes.

Rule 5: Abandonment for Failure to Pay the Issue Fee & Revival (§711, §1308 cross-ref)

What is the primary standard used today to revive an application abandoned for failure to pay the issue fee?

Answer: B

The unintentional delay standard is the standard applicants now typically rely on for reviving an abandoned application, including for missed issue fee deadlines.

Chapter Close-Out Quiz

1. (B)

Missing the fixed, non-extendable issue fee deadline results in abandonment, with a petition based on unintentional delay as the standard revival route.

2. (B)

USPTO-caused delay beyond guideline periods is the core driver of increased PTA; applicant-caused delay (extensions, RCEs) works against PTA instead.

3. (B)

A non-publication request at filing, tied to a certification of no foreign filing, is the specific mechanism to avoid the standard 18-month publication.

4. (B)

Minor, non-substantive corrections are routinely entered as Rule 312 amendments without reopening examination.

5. (B) False

Unlike most Office action deadlines, the issue fee period is fixed and non-extendable — a frequently tested exception to the general extension-of-time rules.

End of Chapter 1300 (Allowance and Issue). Next: Chapter 1400 (Correction of Patents).